

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SHARLENE THOMPSON JOHNSON,

Petitioner

VS.

RICHARD DEWAYNE JOHNSON,

Respondent

) Case Number: FDI-24-799681

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Sharlene Johnson (Mother) and Respondent Richard Johnson (Father) married on 8/20/2011. Mother states the parties' date of separation is "TBD." Father has not filed a Response to the Petition for Dissolution, although he has actively participated in this case. The parties have one minor child, Syleena (DOB: 2/2/2013, age 13). Mother is represented by attorney Aylin Acikalin. Father is self-represented.
- 2) At a hearing on 8/16/2024 (per the Findings and Order After Hearing filed 8/19/2024), Judge Costin made orders enjoining Land Home Financial Services (which had previously been joined as a party to these proceedings) and Father from transferring or disposing of the property located at 435 W. 4th St. in Pittsburg, CA by foreclosure sale. Judge Costin further ordered Father to vacate the property within 60 days, the parties to list the property for private sale, and the proceeds from the sale to be held in an interest-bearing escrow account.
- 3) At a status hearing on 12/8/2025, Mother's attorney informed the Court that the property had sold approximately one month earlier and that the proceeds were being held in escrow.

- 1 4) Now on for hearing is Father's ex parte Request for Order filed 7/6/2026 asking the Court for an
2 immediate distribution of \$40,000 from the escrow account holding the proceeds from the sale of
3 the marital residence. Father states that in June 2025 he was involved in a severe pedestrian motor
4 vehicle accident while riding his motorcycle, which triggered a compounding life-threatening
5 cardiovascular crisis. Father also states that he was recently laid off and has zero income or
6 liquidity. On 6/29/2026, Father received a 3-Day Notice to Pay Rent or Quit from his landlord.
7 The notice states that Father owes \$1,000 for past due rent for June 2026 and an additional \$1,000
8 for rent for July 2026. The notice demands that Father pay \$2,000 by 7/8/2026. Father states that
9 approximately \$170,000 from the sale of the marital residence is being held in escrow. Father
10 states he met and conferred with Mother's attorney prior to filing the ex parte request, but
11 Mother's attorney would not agree to release any funds.
- 12 5) On 7/2/2026, Father filed an Income and Expense Declaration. Father reports no income and no
13 assets. Father states his monthly expenses total \$2,415.
- 14 6) On 7/6/2026, Mother's attorney filed a Responsive Declaration opposing Father's request.
15 Mother's attorney states, "Respondent received a substantial personal injury settlement several
16 years ago and upon information and belief still has a substantial portion of that remaining.
17 Respondent owes petitioner potentially several hundreds of thousands of dollars in child support
18 arrears, spousal support arrears, domestic violence restitution, Family Code 1101 damages,
19 attorney's fees for domestic violence, Family Code 2030 and 271 sanctions. Given (1)
20 Respondent's history of domestic abuse- physical, financial and emotional, (2) the unadjudicated
21 community interests in the personal injury settlement and other community property proceeds, (3)
22 Respondent's failure to provide financial disclosures, (4) evasion of service, disbursing the only
23 known asset to Respondent would leave Petitioner without access to funds to satisfy any future
24 judgment. To allow any release of the proceeds for the respondent would be extremely prejudicial
25 and would constitute harm towards petitioner under the totality of the circumstances and without
26 sufficient evidence of need from Respondent. Certainly no orders should be made on this record
27 on an ex parte basis because Petitioner and the Court need more information on Respondent's
28 financials." Mother's attorney further states that she was in Turkey when she received notice of
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Father's ex parte request. She states she previously notified Father she would be unavailable between 6/23/2026 – 7/28/2026 and requests \$3,000 in attorney's fees sanctions.

7) Per the Temporary Emergency (Ex Parte) Orders filed 7/6/2026, the Court set Father's request for hearing on 8/6/2026 and reserved Mother's request for sanctions.

8) On 7/27/2026, Father filed a Reply Declaration. Father states he is facing the prospect of returning to manual labor, contrary to his physicians' advice due to his serious cardiac condition, because he lacks sufficient funds to support himself. Father states the funds from his prior 2017 personal injury settlement were exhausted years ago. Father states there have been no restraining order requests filed against him by Mother. Father states Mother's attorney's vacation to Turkey is unrelated to his financial crisis and that her request for sanctions is not authorized under *Tenderloin Housing Clinic v. Sparks*. Father argues that, if \$40,000 is distributed to him, approximately \$130,000 will remain in escrow, which adequately protects Mother's potential claims for reimbursement, property equalization, attorney's fees, and other relief.

B. Findings and Order

- 1) Father is authorized to immediately withdraw \$40,000 from the escrow account holding the proceeds from the sale of the residence located at 435 W. 4th St. in Pittsburg, CA.
- 2) Mother shall cooperate in promptly executing any documents and promptly taking any other actions necessary to permit the immediate release of the \$40,000 to Father.
- 3) Mother's request for sanctions is denied.
- 4) The Court will prepare the Findings and Order After Hearing.